E ON CONTROL OF EMISSION

OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)RESOLUTION MEPC.397(83) (adopted on 11 April 2025)

OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)

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(adopted on 11 April 2025)

OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES

(NOx TECHNICAL CODE 2008)

(Certification of an engine subject to substantial modification or being certified to a

Tier to which the engine was not certified at the time of its installation)

THE MARINE ENVIRONMENT PROTECTION COMMITTEE

RECALLING Article 38(a) of the Convention on the International Maritime Organization

concerning the functions of the Marine Environment Protection Committee conferred upon it

by international conventions for the prevention and control of marine pollution from ships,

RECALLING ALSO article 16 of the International Convention for the Prevention of Pollution

from Ships, 1973, as modified by the Protocols of 1978 and 1997 relating thereto (MARPOL),

which specifies the amendment procedure and confers upon the appropriate body of

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from Ships, 1973, as modified by the Protocols of 1978 and 1997 relating thereto (MARPOL),

which specifies the amendment procedure and confers upon the appropriate body of

the Organization the function of considering amendments thereto for adoption by the Parties,

RECALLING FURTHER regulation 13 of MARPOL Annex VI, which makes the Technical Code

on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (hereafter "NO x

Technical Code 2008") mandatory under that Annex,

HAVING CONSIDERED, at its eighty -third session, draft

Code 2008 concerning the certification of an engine subject to substantial modification or being

certified to a Tier to which the engine was not certified at the time of its installation , as

appropriate, approved at its eighty -second session and duly circulated in accordance with

article 16(2)(a) of MARPOL,

1 ADOPTS, in accordance with article 16(2)(d) of MARPOL,

Technical Code 2008, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article 16(2)(f)(ii) and (iii) of MARPOL, that the

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Technical Code 2008, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article 16(2)(f)(ii) and (iii) of MARPOL, that the

amendments shall be deemed to have been accepted on 1 March 2026 unless prior to that date

not less than one third of the Parties or Parties the combined merchant fleets of which

constitute not less than 50% of the gross tonnage of the world's merchant fleet have

communicated to the Organization their objection to the amendments;

3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into force on 1 September 2026 upon their acceptance in accordance with paragraph 2 above;

4 ALSO INVITES the Parties to consider the early application of the NOx Technical Code 2008 concerning the certification of an engine subject to substantial modification or being certified to a Tier to which the engine was not certified at the time of its installation;

5 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL,

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modification or being certified to a Tier to which the engine was not certified at the time of its installation;

5 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL, to transmit certified copies of the present resolution and the text of the amendments contained in the annex to all Parties to MARPOL;

6 ALSO REQUESTS the Secretary-General to transmit copies of the present resolution and its annex to Members of the Organization which are not Parties to MARPOL.

RESOLUTION MEPC.398(83) (adopted on 11 April 2025)

OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)- 2 -

ANNEX

(Certification of an engine subject to substantial modification or being certified to a Tier to which the engine was not certified at the time of its installation)

Chapter 7 – Certification of an existing engine

1 Chapter 7 is split into two sections with the f